

SENATE No. 838

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring wireless infrastructure insurance to support electrical, mechanical, and non-ionizing radiation safety.

PETITION OF:

NAME:

Kirstin Beatty

DISTRICT/ADDRESS:

*149 Central Park Drive, Holyoke, MA
01040*

SENATE No. 838

By Mr. Velis (by request), a petition (accompanied by bill, Senate, No. 838) of Kirstin Beatty, for legislation to require all providers of transmitting antennas for telecommunications services or for video programming or television broadcast through mobile or radio services to obtain wireless infrastructure insurance that support electrical, mechanical, and non-ionizing radiation safety. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring wireless infrastructure insurance to support electrical, mechanical, and non-ionizing radiation safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The legislature finds and confirms all of the following:-

2 Whereas, decades of research indicates wireless can impair health, with numerous studies
3 showing damage to DNA, to fertility, and increases in cancer, in addition to a growing list of
4 studies showing harm to mental health, diabetes risk, increased dementia, etc.

5 Whereas, wireless facilities are a fire risk due to overloaded poles, poorly maintained
6 equipment, and electrical engineering failures causing dangerous electrical fires near homes that
7 block escape routes and may require an hour or so before utilities shut off power and allow
8 firefighters to put out the fire with resulting loss of emergency call access as power is gone as
9 has been especially problematic in large fires.

Whereas, the Pittsfield Board of Health in April 2022 issued an an Emergency Order to Verizon to turn off a cell tower because of sick residents.

Whereas, the Massachusetts Association for Boards of Health now includes cell tower risks in the last four pages of the Legal Handbook and Public Health Guidebook for Massachusetts Boards of Health (2021) and also filed an amicus brief in support the injured Pittsfield citizens (referenced above).

Whereas, in 2020, Boston in FCC’s 19-226 docket stated: 'Boston believes that the concerns of the public are real and that the Commission has done a disservice to itself, local government, consumers, and even the wireless industry in failing to understand and respond to the broadly shared mistrust of the safety of RF emissions.'

Whereas, the Federal Communications Commission has routinely undercut local control, promoted hasty installation, mandated residential antennas, and allowed small 5G antennas serving other users to be placed on private residences without permit under the satellite TV or “OTARD” rule.

Resolved, that the policy goals of this act shall be to provide a minimum floor of insurance requirements for wireless infrastructure within the commonwealth to serve as an incentive for insurers to regulate and require safety.

SECTION 15. Chapter 111 of the General Laws as appearing in the 2021 Official Edition is hereby amended by inserting after section 50 the following section:-

501. (a) Definitions. As used in this section, the following words shall have the following meanings:

“Microcells” are the largest and most powerful small cell, often installed by network operators on utility poles, traffic lights, and sign, and include a “small wireless facility” as defined I 47 C.F.R. § 1.6002(l), as may be amended or superseded.

“Mobile service” means the same as defined in 47 U.S.C. § 153(33), as may be amended.

“Radio communication” or “radio services” means the transmission by radiofrequency of writing, signs, signals, pictures, and sounds of all kinds, including all instrumentalities, facilities, apparatus, and services (among other things, the receipt, forwarding, and delivery of communications) incidental to such transmission.

“Structure” means a pole, tower, base station, or other building, whether or not it has an existing antenna facility, that is used or to be used for the provision of personal wireless service (whether on its own or commingled with other types of services).

“Telecommunications service” means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.

(b) Within the Commonwealth, all providers of transmitting antennas for telecommunications services or for video programming or television broadcast through mobile or radio services are required to carry insurance or, if insurance cannot be obtained, an equivalent bond placed into escrow with an independent escrow agent approved by the either the municipality, if permitted by the municipality, or with an independent escrow agent approved by the radiation regulatory agency. The insurance or the bond must at minimum fulfills the following conditions:

(1) Insurance is provided by a licensed third party provider, and not a self-insured indemnity substitute provided by the applicant.

(2) If a municipally permitted antenna, the insurance or bond must name the municipality, including its' elected or appointed officials, commission members, officers, representatives, agents, and employees as additional insureds.

(3) Coverage shall at minimum include the following:

(i) Commercial general liability and property damage insurance on an "occurrence basis" with limits no less than \$5,000,000 aggregate for a structure or \$1,000,000 for a single microcell antenna or \$500,000 for a single antenna falling under the Over-the-Air-Reception-Device regulations set by the Federal Communications Commission, to cover per occurrence bodily injury, property damage, personal injury, advertising injury, premises liability, products liability, contractual liability, and broad form property damage. The policy shall contain no exclusions for (A) contractual liability; (B) cross liability exclusion for claims or suits by one insured against another; (C) products/ completed operations liability; or (D) pollution including electromagnetic pollution; (E) explosion, fire, or collapse; or (F) contain any other exclusion contrary to the intent of this section.

(ii) When relevant, include automobile liability covering automobile accident caused by the antenna provider's autos, or if the owner has no owned autos, by that of its agents and others allowed access onto its property, with a limit no less than \$1,000,000 per accident for bodily and property damage.

72 (iii) When relevant, evidence of workers compensation and employer's liability insurance
73 with a limit of no less than \$2,000,000 per accident for bodily injury or disease, including for
74 pollution and electromagnetic pollution.

75 (c) Exception to the insurance requirement described in subsection (b) shall be made for
76 personal digital devices and home or business appliances with transmitting antennas.